

ORDINANCE NO. _____

ENTITLED: “AN ORDINANCE CREATING SECTION 6.08.180, FEEDING GEESE AND DUCKS PROHIBITED, OF CHAPTER 6.08, ANIMAL CARE AND CONTROL REGULATIONS GENERALLY, OF TITLE 6, ANIMALS, OF THE CODE OF THE CITY OF CHEYENNE, WYOMING.”

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That Section 6.08.180, Feeding geese and ducks prohibited, of Chapter 6.08, Animal Care and Control Regulations Generally, of Title 6, Animals, of the Code of the City of Cheyenne, Wyoming, is hereby created to read as follows:

6.08.180 FEEDING GEESE AND DUCKS PROHIBITED.

A. NO PERSON MAY FEED, PROVIDE, OR GIVE ANY FOOD OR OTHER EDIBLE ITEM TO ANY GOOSE OR DUCK, OR TO ANY FLOCK OF GEESE OR DUCKS, IN OR UPON:

1. ANY PROPERTY OWNED BY THE CITY OF CHEYENNE WITHIN THE CITY LIMITS;
2. ANY PARK, GOLF COURSE, OR OTHER RECREATION, OPEN SPACE, OR PUBLIC USE AREA WITHIN THE CITY LIMITS WHICH IS OPERATED BY THE CITY OF CHEYENNE; OR
3. ANY PARK, GOLF COURSE, OR OTHER RECREATION, OPEN SPACE, OR PUBLIC USE AREA WITHIN THE CITY LIMITS WHICH IS OWNED BY THE CITY OF CHEYENNE AND OPERATED BY ANY THIRD PERSON OR ENTITY PURSUANT TO A LEASE OR OTHER USE AGREEMENT WITH THE CITY OF CHEYENNE.

B. ANY PERSON WHO VIOLATES THE PROVISIONS OF THIS SECTION SHALL, UPON CONVICTION, PAY A FINE OF NOT LESS THAN TEN DOLLARS (\$10.00) AND NOT MORE THAN TWENTY-FIVE DOLLARS (\$25.00), TOGETHER WITH COURT COSTS AS MAY BE ASSESSED BY THE MUNICIPAL COURT FOR CONVICTIONS OF OTHER VIOLATIONS OF THE CHEYENNE CITY CODE FOR WHICH A CRIMINAL PENALTY IS PROVIDED.

C. IN LIEU OF A CITATION, A POLICE OFFICER MAY ISSUE ONE WRITTEN WARNING TO ANY PERSON WHO HAS NOT PREVIOUSLY BEEN CONVICTED OF VIOLATING THIS SECTION.

D. NO MORE THAN ONE CITATION ALLEGING A VIOLATION OF THIS SECTION MAY BE ISSUED TO ANY ONE PERSON IN ANY TWENTY-FOUR (24) HOUR PERIOD.

Section 2. This ordinance shall be in full force and effect upon approval and publication.

FIRST READING: _____

SECOND READING: _____

THIRD AND FINAL READING: _____

Richard L. Kaysen, Mayor

(SEAL)

ATTEST:

Carol Intlekofer, City Clerk

Publish: Wyoming Tribune Eagle